

SOP - Changes in Deemed OEM

Deemed OEM Definition: If a brand does not have a presence in India i.e. the manufacturer of the brand does not sell directly in India, then the manufacturer can designate a domestic seller as the “Deemed OEM” of the brand on GeM. This Deemed OEM, for all intents and purposes, is equivalent to any actual OEM on GeM.

Deemed OEM Authorization Process:

1. Currently Deemed OEMs are authorized on GeM on the basis of acceptance of the OEM Undertaking and submission of “Deemed OEM Letter” with the OEM Request ([format link](#)). The request is reviewed by the approval team and processed.

Revoke/Change Deemed OEM: If an existing deemed OEM needs to be changed, the following three cases may apply:

1. The actual OEM wants to change the Deemed OEM of a brand i.e. transfer deemed OEM rights to another seller
2. The actual OEM themselves want to be the OEM now in place of the Deemed OEM
3. The actual OEM does not want to transact on GeM any more

Depending on the case, the actual OEM has to provide the following information

1. An NOC from the existing deemed OEM stating that they accept the required change and Deemed OEM authorization for the new Deemed OEM (if applicable)
2. Deemed OEM Letter submitted initially for recognition of the existing deemed OEM and Deemed OEM Cancellation (signed and stamped, format attached).
3. Action to be taken on existing catalogs and resellers
 - a. Whether the existing catalogs and resellers should continue as is on GeM
 - b. Whether existing catalogs and resellers need to be removed for the new OEM/Deemed OEM to start afresh)
4. Whether the brand should continue to exist on GeM for selling (for case 3)
5. OEM Documentation - Trademark Certificate

The above details to be shared by the actual OEM on an email ID and handled by the helpdesk team.

1. A ticket would be logged by the helpdesk team to take such requests
2. Once all the required information is obtained from the actual OEM, the ticket would be processed by MSP OEM Approval team
 - a. A JIRA would be created with approvals of designated PMU team members to carry out the activity.
 - b. Post approval, the required actions would be done
 - c. Since the cases might be different each time, the changes would be done using a query or backend script.

Note: If the actual OEM wants to take over OEM Responsibilities, they will create an OEM request after the above actions are complete.

List of possible actions based on inputs by the actual OEM:

Q1 Categories:

1. If OEM does not want to continue on GeM - Complete removal of brand/catalogs from the marketplace -- Manual backend activity through JIRA
2. If Deemed OEM is to be transferred to another seller
3. If the actual OEM wants to take over OEM responsibilities – Removal of existing OEMs mapping from the system to allow the actual OEM to create a new OEM Request -- Manual backend activity through JIRA

Q2 Categories:

1. If OEM does not want to continue on GeM - Complete removal of brand/catalogs from the marketplace -- Manual backend activity through JIRA
2. If Deemed OEM is to be transferred to another seller
3. If the actual OEM wants to take over OEM responsibilities – Removal of existing OEMs mapping from the system to allow the actual OEM to create a new OEM Request -- Manual backend activity through JIRA

Q3 Categories:

1. If OEM does not want to continue on GeM: Complete removal of brand/catalogs from the marketplace -- Manual backend activity through JIRA
2. If Deemed OEM is to be transferred to another seller:
 - a. Visibility to the new deemed OEM of the existing catalogs and resellers
 - b. Flipping of existing OEMs catalogs to Reseller catalogs -- Manual backend activity through JIRA
3. If the actual OEM wants to take over OEM responsibilities –Flipping of existing OEMs catalogs to Reseller catalogs -- Manual backend activity through JIRA

Deemed OEM Cancellation Format

To
CEO
Gem-Government E Marketplace
Delhi
TO WHOMSOEVER IT MAY CONCERN

This is to confirm that we _____ (OEM name) are OEM of _____ (Brand and category name). We are selling through our Authorized Distributors in India. We are providing required technical support, consumable & spare parts. We also facilitate imperative trainings time to time. We had authorized _____. (Deemed OEM name) to register as "Deemed OEM" for _____ brand (OEM brand) for our different range of products vide authorisation letter dated DD/MM/YY. We would hereby like to cancel the authorisation provided to Deemed OEM name w.e.f. DD/MM/YY. We (OEM name) would be fully responsible for all the obligations of per Deemed OEM authorisation letter dated DD/MM/YY provided by us.

It is requested that _____ (Deemed OEM name) should be cancelled as Deemed OEM from the system. We also give an undertaking that we will fully comply with the Deemed OEM Authorisation Removal process of GeM to ensure business continuity.

(Signature of Authorized Signatory)
For _____ (OEM)
OEM name)

(Signature of Authorized Signatory)
For _____ (Deemed

Name:- Designation:-
E-mail:
Tel (Landline):-
Full Address:
Date:-

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